

Multiple Choice (10 marks)

1. Who defined jurisprudence as the knowledge of things divine and human, the science of right and wrong
 - (a) Austin
 - (b) Ulpian
 - (c) Holland
 - (d) Allen
2. Which proposition below is the most powerful refutation of Bentham's felicific calculus?
 - (a) Happiness is less important than economic prosperity.
 - (b) It is impossible to calculate all the consequences of one's acts.
 - (c) Pain and pleasure are inevitable features of life.
 - (d) Utilitarianism fails to take account of differences in social background.
3. Lyotard's dictum 'I define postmodern as incredulity toward meta-narratives' means:
 - (a) Individual stories are suspect.
 - (b) The law is static.
 - (c) Universal values are meaningless.
 - (d) Literature reproduces repression.
4. Which case was the first to define the meaning of the doctrine of 'margin of appreciation' as applied by the European Court of Human Rights?
 - (a) Goodwin v UK (2002)
 - (b) Airey v Ireland (1979)
 - (c) Osman v UK (1998)
 - (d) Handyside v UK (1976)
5. What other criteria were imposed by the Badinter Commission on the former Yugoslav republics?
 - (a) The Commission required a commitment to submit disputes to the ICJ
 - (b) The Commission required a change in boundaries
 - (c) The Commission required a commitment to human rights and democracy
 - (d) The Commission required an exchange of ethnic populations

True / False (10 marks)

Answer True or False

6. True or False: There is an increasing recognition that retribution is fundamental because other justifications for punishment appear to have failed.
7. True or False: The Historical School of jurisprudence emphasizes that laws are primarily derived from current societal norms and customs.
8. True or False: The phrase 'Lex iniusta non est lex' implies that law has lexical priority over morality.
9. True or False: Hart's distinction primarily refutes the natural law perspective on the relationship between morality and legal obligations.
10. True or False: Article 2(4) of the UN Charter prohibits all types of force, including economic sanctions and political interference.

Long Form Response (20 marks)

Answer each question with a clear and complete explanation.

11. Discuss the obligations of states in conducting negotiations, focusing on how these obligations ensure that the negotiations are meaningful and effective in a constitutional context.
12. Discuss the strongest argument against ethical relativism's opposition to human rights, focusing on the role of cognitivism in this debate. Analyze its implications for constitutional law.

End of Paper